

Superior Court of the State of California, County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C16

HON. JUDGE CARMEN R. LUEGE

Date: July 31th, 2026

Posted: July 30th, 5:00 PM

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Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4:30 p.m. on Thursday. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5216. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appeareances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

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#	Case Name	Tentative
54	Doe vs. Dillon 22-01270433	1-4. Demurrer to Complaint 5. Motion to Strike Defendant Ralph Dillon’s demurrer is SUSTAINED with leave to amend as to all six causes of action on statute-of-limitations grounds. The Court GRANTS Dillon’s request for judicial notice of Exhibits 1 and 2, consisting of records filed in Ralph Dillon v. Global Financial Data Incorporated, Orange County Superior Court Case No. 30-2014-00738954-CU-OE-CJC. (Evid. Code, § 452, subd. (d).) Defendants Carrie Weeks, Pierre Gendreau, and Lindsay Amendola’s demurrer is SUSTAINED with leave to amend as to all six causes of action on statute-of-limitations grounds. Defendant Kevin Harty’s demurrer is SUSTAINED with leave to amend as to all six causes of action on statute-of-limitations grounds. Defendant Kevin Harty’s motion to strike is DEEMED MOOT in light of the ruling sustaining the demurrer to the entire Complaint with leave to amend. Defendant Kevin Iwanaga’s demurrer is SUSTAINED with leave to amend as to all six causes of action on statute-of-limitations grounds. DEFENDANT DILLON’S DEMURRER Where the dates alleged in the complaint show the cause of action is barred by the statute of limitations, a general demurrer lies. (See <i>Saliter v. Pierce Brothers Mortuaries</i> (1978) 81 Cal.App.3d 292, 300.) The running of the statute must appear “clearly and affirmatively” from the face of the complaint. It is not enough that the complaint might be time-barred. (<i>Committee for Green Foothills v. Santa Clara County Bd. of Supervisors</i> (2010) 48 Cal.4th 32, 42.) If the complaint alleges facts establishing a defense to the claim, plaintiff must “plead around” that defense (e.g., allege facts showing defendant is estopped from raising a statute of limitations defense). (See <i>Czajkowski v. Haskell & White, LLP</i> (2012) 208 Cal.App.4th 166, 174-175.) Where plaintiff relies on the “discovery rule” to avoid a statute of limitations defense, the complaint must specifically plead facts that show (i) the time and manner of discovery, and (ii) plaintiff’s inability to have made an earlier discovery despite reasonable diligence. (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 808.) When, at the time the plaintiff’s cause of action accrues, the plaintiff is a minor or lacks legal capacity to make decisions, the time of this disability is not part of the time limited for commencing the action. (Code Civ. Proc., § 352, subd. (a); <i>Shalabi v. City of Fontana</i> (2021) 11 Cal.5th 842, 847-848.)

		Claims for invasion of privacy, intentional infliction of emotional distress, and abuse of process are subject to a two-year limitations period. (Code Civ. Proc., § 335.1.) Here, the Complaint alleges that Dillon and Gendreau stole, copied, and disseminated the confidential juvenile report in or about 2013. (Compl., ¶ 23.) It further alleges that Dillon and his attorney produced the report during Dillon’s lawsuit and that Dillon testified during his deposition concerning the report and its dissemination. (Compl., ¶ 24.) The judicially noticed records establish that Dillon filed that action on August 11, 2014, and that it was dismissed on June 5, 2015. (RJN, Exs. 1-2.) Thus, the conduct specifically attributed to Dillon appears to have occurred no later than 2015, more than seven years before Plaintiff filed this action in July 2022. While the Complaint alleges that Plaintiff did not discover the facts giving rise to this action until sometime in August 2021 (Compl., ¶¶ 18, 37), it fails to plead facts that show how she discovered the relevant facts, the circumstances surrounding that discovery, or why she could not have discovered them earlier despite reasonable diligence. Although Plaintiff argues in opposition that she was a minor when the alleged conduct occurred, the Complaint does not clearly allege that Plaintiff was a minor, her age at the time, or when she reached the age of majority. Accordingly, the demurrer on this ground is SUSTAINED with leave to amend. DEFENDANTS WEEKS, GENDREAU & AMENDOLA’S DEMURRER The Complaint alleges that Dillon and Gendreau stole, copied, discussed, and disseminated the confidential juvenile report in or about 2013. (Compl., ¶ 23.) It further alleges that private information from the report appeared in a publicly filed complaint on August 29, 2019, and in the employment action filed by Gendreau and Amendola on January 14, 2020. (Compl., ¶¶ 29–30.) Plaintiff, however, did not file her complaint until July 18, 2022. Although the Complaint alleges that Plaintiff did not discover the facts giving rise to this action until sometime in August 2021 (Compl., ¶¶ 18, 37), it does not allege how she discovered them, the circumstances surrounding her discovery, or why she could not have discovered them earlier despite reasonable diligence. Plaintiff also argues that she was a minor when the alleged conduct occurred, but the Complaint does not clearly allege her age, when she reached the age of majority, or facts permitting the Court to determine the effect of minority tolling. The Complaint does not adequately plead delayed discovery, minority tolling, or another basis for avoiding the apparent limitations bar. Accordingly, the demurrer on this ground is SUSTAINED with leave to amend.
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DEFENDANT HARTY’S DEMURRER

The Complaint alleges that Dillon and Gendreau discussed the report with Harty in connection with events beginning in 2013 and alleges generally that Harty discussed Plaintiff’s private information during and after his employment at GFD. (Compl., ¶¶ 24, 35.) Although the Complaint alleges that Harty testified during a deposition, it does not allege when that deposition occurred, and his deposition testimony is protected by the litigation privilege. (Compl., ¶ 36.)

The Complaint also fails to allege facts adequately supporting delayed discovery or minority tolling for the reasons discussed above. Accordingly, the demurrer to all six causes of action on statute-of-limitations grounds is SUSTAINED with leave to amend.

DEFENDANT HARTY’S MOTION TO STRIKE

Because Harty’s demurrer to the entire Complaint is sustained with leave to amend, his motion to strike is DEEMED MOOT.

DEFENDANT KEVIN IWANAGA’S DEMURRER

The Complaint alleges that Dillon and Gendreau stole, copied, and disseminated the confidential juvenile report in or about 2013. (Compl., ¶ 23.) It alleges that Iwanaga participated in discussions concerning Plaintiff and the report and, on August 29, 2019, filed an employment action containing private information allegedly taken from the report. (Compl., ¶¶ 29, 35.) The two-year limitations period expired before Plaintiff filed this action on July 18, 2022.

The Complaint alleges generally that Iwanaga participated in discussions “during, and subsequent to” his employment and testified during a deposition, but it does not identify the date or recipient of any postemployment disclosure or the date of the deposition. (Compl., ¶¶ 35–36.) His deposition testimony is protected by the litigation privilege, and the remaining allegations do not identify a timely nonprivileged disclosure.

Although the Complaint alleges that Plaintiff did not discover the facts giving rise to this action until August 2021 (Compl., ¶¶ 18, 37), it does not allege how she discovered them, the circumstances surrounding her discovery, or why she could not have discovered them earlier despite reasonable diligence. Nor does the Complaint allege her age or when she reached the age of majority. Plaintiff therefore does not adequately plead delayed discovery or minority tolling.

Accordingly, the demurrer to all six causes of action on statute-of-limitations grounds is SUSTAINED with leave to amend.

		Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. Defendants to give notice.
55	Trinh vs. Nguyen 22-01279860	Motion for Summary Judgment and/or Adjudication Defendant Father Nguyen’s motion for summary judgment is DENIED. Plaintiff objects to the Declarations of Cao Lam, Tran Thanh Man, and Defendant Father Nguyen because the declarations are not accompanied by supporting attestations from an interpreter attesting as to the interpreter’s identity, qualifications, and the accuracy of the translations provided by the interpreter. A witness is disqualified if he or she is “[i]ncapable of expressing himself or herself concerning the matter so as to be understood, either directly or through interpretation by one who can understand him.” (Evid. Code § 701(a).) A recent case, <i>Detrick v. Shimada</i> (April 28, 2026) 120 Cal.App.5th 170, is instructive. In <i>Detrick</i>, the Court of Appeal determined that an English-language declaration was inadmissible when it was executed by a party, Shimada, who could not write or speak English and, thus, could not certify under penalty of perjury that the content of her declaration was true and correct as required by Code of Civil Procedure section 2015.5. (<i>Id.</i> at p. 177.) In the reply brief, Shimada’s attorney submitted a declaration stating that Shimada reviewed the declaration with a Japanese-speaking employee and affirmed each statement before signing. (<i>Id.</i>) The Court of Appeal found that insufficient. Shimada’s declaration that the content of her English-language declaration was true and correct was not competent. Without knowing the identity of the translator and their qualifications <i>and</i> without the translator’s attestation that the translation was accurate, the court “still lack[ed] the necessary link providing a foundation for Shimada’s declaration establishing that it is trustworthy in light of her admitted inability to read or speak English.” (<i>Id.</i> at p. 178.) The Declarations of Cao Lam and Tran Thanh Man each state that because the declarant does not speak English, they reviewed the declaration with the assistance of translators so that they could understand the contents before signing it. (Lam Decl. ¶ 13 [ROA 508], Man Decl. ¶ 15 [ROA 514].) Defendant Father Nguyen declares in his Declaration that English is his second language, and although Defendant is conversational in English, he has “difficulty understanding the legalese and technical terms used in the prior and current lawsuits.” (Father Nguyen Decl. ¶ 3 [ROA 522].) Defendant also declares that “because English is [his] second language, [Defendant] reviewed this declaration with the assistance of translators and [his] counsel to understand its contents before signing it.” (<i>Id.</i> at ¶ 104.) Here, as in <i>Detrick</i>, there is an absence of foundational facts from which the court could ascertain whether the English-language declarations of Cao Lam, Tran Thanh Man, and Father Nguyen are accurate. Defendant argues that his declaration is admissible because Defendant can express himself to be understood and is conversational in English with difficulty only with legalese and technical terms. Defendant’s Declaration, however, consists of 104 paragraphs and over 200 pages of exhibits, the majority of which goes beyond conversational English.

		Unlike the Declarations of Cao Lam, Tran Thanh Man, and Defendant Father Nguyen, the Declaration of Tuan Viet Nguyen does not state that Tuan Viet Nguyen has any limitations regarding the English language. However, Plaintiff submitted a May 22, 2026 email stating that Tuen Viet Nguyen will need a Vietnamese interpreter for his contemplated deposition. (Ta Decl. ¶ 11, Exh. I [ROA 556].) Defendant's counsel argues that being able to speak and read a language are two different skills. (See <i>id.</i>) This argument is not persuasive. In addition, in his Reply, Defendant submitted Bao Luu's declaration explaining that he participated in a telephone conference with declarant Tuan Viet Nguyen on July 11, 2026, during which he interpreted Tuan Viet Nguyen's entire declaration from English to Vietnamese. The court interprets Bao Luu's certification that he orally interpreted Tuan Viet Nguyen's Declaration as an admission that Tuan Viet Nguyen has limitations in reading and understanding his English-language Declaration. To cure these defects in the declarations originally filed in support of the motion, Defendant Father Nguyen, in his Reply, submits certifications identifying Bao Luu's qualifications, the recent review of the declarations submitted in support of the motion, the telephonic interpretation process, and each declarant's confirmation of the unchanged declaration before re-execution. (Reply at 3:4-7 [ROA 566].) Defendant contends that these certifications satisfy the foundational requirements established in <i>Detrick</i>. (<i>Id.</i> at 3:8.) Defendant then argues that because the certifications do not change any substantive testimony, exhibit, or material fact, the certifications permit the Declarations in support of the motion to be admissible so that they do not qualify as new evidence. The Court disagrees with this position. The record before the court shows that the Declarations originally signed and submitted in support of the motion were defective at the time they were filed as they were not certified by a certified interpreter. Thus, the Reply Declarations containing the sworn certifications are new evidence and the Court declines to consider them. Additionally, there are factors in the translation process that cause the Court to find the declarations untrustworthy. For example, the original declarations were translated by a certified interpreter only after the defect was brought to the attention of the moving party in Plaintiff's opposition to the motion and the interpreter stated that each declarant did not change any statements in his or her original declaration before re-execution. This alleged solution to the initial defects in the original declarations is dubious. Lastly, the Court finds that without the Declaration of Defendant Father Nguyen, Defendant Father Nguyen cannot meet his initial burden on summary judgment to show that Defendant did not publish each of the 24 alleged defamatory statements with actual malice, which includes a reckless disregard for the truth of the statements. (<i>Edwards v. Ellis</i> (2021) 72 Cal. App.5th 780, 793.) Accordingly, the motion for summary judgment is DENIED. Plaintiff to give notice.
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56	Jacobson vs. LaVine & Associates Inc. 22-01269276	Motion for Summary Judgment and/or Adjudication The Motion for Summary Judgment brought by Defendant Best Best & Krieger, LLP (“BBK”) is GRANTED. Defendant’s unopposed Requests for Judicial Notice (ROA Nos. 749 and 753) are GRANTED, pursuant to Evidence Code section 452, subdivision (d), with the limitation that the Court notices only the existence of the documents and the fact of their filing. (<i>Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort</i> (2001) 91 Cal.App.4th 875, 882.) Plaintiffs’ Evidentiary Objections Nos. 1 through 3 (ROA No. 807), directed toward the Declaration of Bruce G. Holden are OVERRULED. Plaintiffs’ Evidentiary Objection No. 4 (ROA No. 807) is SUSTAINED, as the identified statement is conclusory. (See <i>Colby v. Schwartz</i> (1978) 78 Cal.App.3d 885, 889; See also <i>Fuller v. Goodyear Tire & Rubber Co.</i> (1970) 7 Cal.App.3d 690, 693.) Defendant’s Evidentiary Objections directed towards the Declaration of Lawrence Jacobson, Nos. 1 through 8, are OVERRULED. (ROA No. 826.) Defendant’s Evidentiary Objections directed towards the Declaration of Darlene Boliver, Nos. 1, 2, and 4 through 14 are OVERRULED. (ROA No. 826). Objection No. 3 to the Declaration of Darlene Boliver is SUSTAINED, as the identified statement lacks foundation, lacks personal knowledge and is speculative. Defendant’s Evidentiary Objections directed towards the Declaration of Leslie Smith, Nos. 1 through 11, are SUSTAINED. (ROA No. 826.) Objection No. 1 is sustained as the attached trial testimony is hearsay and Plaintiffs have not established application of a hearsay exception, such as Evidence Code section 1292. Objections Nos. 2, 3, 4, 5, 6, 7, 9 and 10 are sustained, for lack of personal knowledge and foundation. Objection No. 8 is sustained as hearsay. Finally, Objection No. 11 to the Declaration of Leslie Smith is sustained for lack of authentication and foundation. With respect to this objection, the same is directed towards Exhibit D, which purportedly consists of “true and correct copies of various documents LaVine produced in response to the Court Order in the Probate Action....” (¶18 of Smith Declaration [ROA No. 808].) Plaintiffs attempt to authenticate the 537 pages included within Exhibit D, by reference to a stipulation with LaVine, wherein in LaVine agreed that documents Bates labelled JLCPA000001-JLCPA017657 “may be authenticated at trial and in pretrial proceedings without the necessity of further testimony solely for purpose of establishing that the documents are what they purport to be, namely, documents produced from the files and electronic media collected from LaVine & Associates in 2020 and copied during the July 2020 production process.” (¶14 of Smith Declaration and Exhibit C thereto, at ¶5 and ¶7 [ROA No. 808].) The Stipulation was not executed under penalty of perjury and makes no attempt to individually authenticate documents. (¶14 of Smith Declaration and Exhibit C thereto [ROA No. 808].) Indeed, the stipulation indicates it was not an admission as to “[t]he truth of any statement contained within any document” or “[t]he authorship of any particular document where authorship is disputed.” (<i>Ibid.</i> at ¶8.) As noted by Defendant, the above fails to authenticate the “hundreds of pages of transaction documents, emails, handwritten notes, and accounting documents” included within the Exhibit. (See Objection No. 11 to Smith Declaration [ROA
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		No. 826.]) Moreover, the stipulation offered is <i>not</i> binding on Defendant BBK: “A Stipulation is an agreement between counsel respecting business before the court [citation], and like any other agreement or contract, it is essential that the parties or their counsel agree to its terms.” (<i>Palmer v. City of Long Beach</i> (1948) 33 Cal.2d 134, 142.) Finally, it is worth noting that, to the extent Plaintiffs offer the documents for the truth of the statements therein, <i>much</i> of the information included within Exhibit D is hearsay. Turning to the merits, as explained by the California Supreme Court in <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, “how the parties moving for, and opposing, summary judgment may each carry their burden of persuasion and/or production depends on which would bear what burden of proof at trial.” (<i>Id.</i> at p. 851.) Where a statute of limitations defense is raised, a moving defendant bears the initial burden to demonstrate the claim is barred. (<i>Aryeh v. Canon Business Solutions, Inc.</i> (2013) 55 Cal.4th 1185, 1197.) Once that burden is met, the burden shifts to plaintiff “to demonstrate his claims survive based on one or more...exception[] to the basic limitations period.” (<i>Ibid.</i>; See also <i>Glue-Fold, Inc. v. Slautterback Corp.</i> (2000) 82 Cal.App.4th 1018, 1030 and <i>Acosta v. Glenfed Development Corp.</i> (2005) 128 Cal.App.4th 1278, 1292-1293.) “That plaintiffs may have anticipated defendants’ reliance on a limitations defense by alleging facts supporting a statutory exception to that defense is not sufficient to justify shifting the burden that otherwise would be imposed on plaintiffs.” (<i>Acosta v. Glenfed Development Corp.</i> (2005) 128 Cal.App.4th 1278, 1293.) “The statute of limitations usually commences when a cause of action ‘accrues,’ and it is generally said that ‘an action accrues on the date of injury.’” (<i>Vaca v. Wachovia Mortgage Corp.</i> (2011) 198 Cal.App.4th 737, 743.) “Alternatively, it is often stated that the statute commences ‘upon the occurrence of the last element essential to the cause of action.’” (<i>Ibid.</i>) The Fourth Amended Complaint alleges conduct spanning between May of 2005 through to September 25, 2014, which depleted the assets of the Trust. (See ¶38-¶59 and ¶113 of 4AC [ROA No. 597].) Per the Complaint, moving Defendant aided and abetted Jeffrey Jacobson, in the above conduct. (See ¶137 of 4AC [ROA No. 597].) The claims against Defendant BBK arise from the conduct of Bruce G. Holden, who is alleged to have been acting in his capacity as a representative of Defendants BBK and GRSM. (¶13, ¶15 and ¶105 of 4AC [ROA No. 597].) These parties are designated the “Holden Defendants.” (<i>Id.</i> at ¶15.) While the Complaint vaguely alleges acts of fraud in 2017 by Defendant Holden (¶168 of 4AC [ROA No. 597]) and vaguely alleges the “Holden Defendants” aided and abetted Jeffrey Jacobson “between in or about September 2005 and August 2021” (¶137 of 4AC [ROA No. 597]), the Complaint does not identify any injuries sustained in connection to the above. Nor have Plaintiffs identified within their opposition, any allegations of an injury past 2014, which would affect accrual.
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		Moreover, regardless, Defendant has established that any conduct attributable to it occurred in 2012 or before. (See SSUF No. 1 [ROA No. 803]; See also ¶3-¶5 of Holden Declaration [Roa No. 758].) In response to the above, Plaintiffs indicate they “do not dispute that Bruce Holden was employed by BBK before joining GRSM in approximately 2012.” (See Responsive Separate Statement, at SSUF No. 1 [ROA No. 803].) While Plaintiffs proceed to “dispute any implication that BBK’s potential liability is limited solely by the date Mr. Holden changed firms” (See ROA No. 803), this attempted dispute is <i>directly</i> contrary to the allegations in the Complaint. Within a section labelled “BB&K,” the Complaint alleges that “at various times when defendant Holden made the representations and/or omissions alleged herein, he was acting within the course and scope of his employment and authority for the defendant BB&K during those years in which he was employed with BBK.” (¶105 of 4AC [ROA No. 597].) Thereafter, the Complaint alleges that “at various other times when defendant Holden made the representations and/or omissions alleged herein, he was acting within the course and scope of his employment and authority for the defendant GRSM during those years in which he was employed with GRSM.” (<i>Id.</i> at ¶106.) “Plaintiffs are informed and believe, and thereon allege, that during all relevant times BB&K acted through its agent Holden in carrying out the acts and/or omissions alleged herein.” (<i>Id.</i> at ¶110.) Finally, the Complaint alleges Defendant BBK “intentionally failed to disclose” information, “[c]ommencing in or about 2005 and continuing until such time as Holden was no longer employed by or acting as an agent for BB&K.” (<i>Id.</i> at ¶113.) “[T]he burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability <i>as alleged in the complaint</i>.” (<i>Hutton v. Fidelity National Title Co.</i> (2013) 213 Cal.App.4th 486, 493.) Additionally, Plaintiffs failed to offer admissible evidence demonstrating any conduct by BBK post-2012. Given Defendant has established that any conduct attributable to it occurred prior to 2012 and given the Complaint alleges conduct spanning between May of 2005 through to September 25, 2014, which depleted the assets of the Trust (¶38-¶59 of 4AC [ROA No. 597]), Defendant has established accrual no later than 2014. As relevant to Plaintiffs’ remaining claims against moving Defendant, the statute of limitations for fraud is generally 3 years. (Code Civ. Proc., § 338, subd. (d).) The statute of limitations for a UCL claim is 4 years. (<i>Ivanoff v. Bank of America, N.A.</i> (2017) 9 Cal.App.5th 719, 732 and Bus. & Prof. Code, § 17208.) As this action was initiated on July 11, 2022, more than 4 years after 2014, Defendant met its initial burden, as to both remaining claims. Consequently, the burden to establish an exception to the statutory limitation periods shifted to Plaintiffs. (<i>Aryeh v. Canon Business Solutions, Inc.</i> (2013) 55 Cal.4th 1185, 1197.) To avoid the bar of the statute of limitations, the Fourth Amended Complaint alleges “Plaintiffs did not discover, and could not reasonably discover, the facts constituting BB&K’s willful acts and omissions until at least August 9, 2021.” (¶116 of 4AC [ROA No. 597].)
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		As noted above, “[t]he statute of limitations usually commences when a cause of action ‘accrues,’ and it is generally said that ‘an action accrues on the date of injury.’” (<i>Vaca v. Wachovia Mortgage Corp.</i> (2011) 198 Cal.App.4th 737, 743.) However, “[t]hese general principles have been significantly modified by the common law ‘discovery rule,’ which provides that the accrual date may be ‘delayed until the plaintiff is aware of her injury and its negligent cause.’” (<i>Ibid.</i>) “[U]nder the discovery rule, ‘the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her.’” (<i>Ibid.</i>) Stated similarly, “[a] plaintiff has reason to discover a cause of action when he or she ‘has reason at least to suspect a factual basis for its elements.’” (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 807.) “Under the discovery rule, suspicion of one or more of the elements of a cause of action, coupled with knowledge of any remaining elements, will generally trigger the statute of limitations period.” (<i>Ibid.</i>) The term elements, as used above, refers to the “generic” elements of wrongdoing, causation, and harm. (<i>Ibid.</i>) “In so using the term ‘elements,’ we do not take a hypertechnical approach to the application of the discovery rule. Rather than examining whether the plaintiffs suspect facts supporting each specific legal element of a particular cause of action, we look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them.” (<i>Ibid.</i>) Significantly, “‘ignorance of the identity of the defendant is not essential to a claim and therefore will not toll the statute.’” (<i>Vaca v. Wachovia Mortgage Co.</i> (2011) 198 Cal.App.4th 737, 743.) “The discovery rule does not delay accrual in that situation because the identity of the defendant is not an element of a cause of action.” (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 807.) This principle is based on “the commonsense assumption” that once a party has knowledge of the cause of action, “he ‘normally’ has ‘sufficient opportunity,’ within the ‘applicable limitations period,’ ‘to discover the identify’ of the former.” (<i>Ibid.</i>) It is undisputed Plaintiffs are alleging Defendant BBK engaged in fraud and unfair business practices, to aid and abet breaches of fiduciary duty, fraud, and acts of conversion by Jeffrey Jacobson. (See ¶67 and ¶137 of 4AC [ROA No. 597].) Fatal to Plaintiffs’ claims is their admission they “became aware of the allegations and concerns regarding Jeffrey Jacobson’s handling of family assets” in September of 2017. (See SSUF Nos. 3, response [ROA No. 803]; See also ¶5 of Lawrence Declaration.) Similarly, “Plaintiffs do not dispute they received and reviewed the Probate Petition,” filed by Daniel Jacobson, no later than June of 2018. (<i>Id.</i> at SSUF No. 5.) Like the Fourth Amended Complaint herein, the Probate Petition alleged Jeffrey Jacobson improperly organized the sale of the Gladys Factory and the acquisition of the Freeman Factory, via a 1031-exchange, designed to personally benefit Jeffrey Jacobson and his individual businesses. (See ¶38-¶59 of 4AC [ROA No. 597] and ¶19-¶26 of Probate Petition [Exhibit 1 of Defense RJN] [ROA No. 758].) Likewise, the Petition alleged Jeffrey Jacobson obtained loans, to the detriment of the trust and/or was indebted to the trust. (See ¶52-¶54 of 4AC [ROA No. 597], and ¶40 and ¶61 of Petition [Exhibit 1 of Defense RJN] [ROA No. 758].)
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		Indeed, Plaintiff Lawrence Jacobson concedes having learned information in 2017 that caused concern, led him to “questions Jeffrey Jacobson’s handling of certain assets” and led him to believe further investigation was necessary. (¶6-¶8 of Lawrence Declaration [ROA No. 797].) Similarly, Plaintiff Darlene Boliver declares that she “became aware of information that caused [her] to investigate family assets and trust-related matters,” in approximately February of 2018. (¶10, ¶15 and ¶42 of Boliver Declaration [ROA No. 799].) In responding to this motion, Plaintiffs repeatedly assert they did not “possess the internal accounting records, tracing analysis, debt schedules, ownership analysis, communications, historical summaries, or other documents maintained within professional files,” until after discovery was produced within the probate proceeding (¶7 of Lawrence Declaration [ROA No. 797]; See also ¶8-¶20 and ¶28 of Lawrence Declaration and ¶9, ¶13-¶24, ¶27 and ¶33 of Boliver Declaration [ROA No. 799]); however, “[a]ggrieved parties generally need not know the exact manner in which their injuries were ‘effected, nor the identities of all parties who may have played a role therein.” (<i>Vaca v. Wachovia Mortgage Co.</i> (2011) 198 Cal.App.4th 737, 744.) Similar to the above, Plaintiffs repeatedly refer to the discovery of “all material facts,” “all facts underlying every claim” and “all material information” (Opposition: 9:25, 10:7, 11:4-5, 11:8, 11:10, 13:6, 14:28-15:1 and 18:24 [ROA No. 801]) as the necessary trigger for the statute of limitations; however, as noted above, “we look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them.” (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 807.) Here, Plaintiffs have conceded they had reason to suspect wrongdoing was the cause of their injuries, as early as September of 2017 and June of 2018. Similar to the circumstances in <i>Vaca v. Wachovia Mortgage Corp.</i> (2011) 198 Cal.App.4th 737, the above was sufficient to trigger the statute of limitations. Even if Plaintiffs were ignorant of the role Defendant BBK purportedly played in the fraud, by June of 2018 they were aware of their injury and its wrongful cause. (<i>Id.</i> at p. 744.) Additionally, to take advantage of delayed discovery, “plaintiff must affirmatively excuse his failure to discover the fraud within three years after it took place, by establishing facts showing that he was not negligent in failing to make the discovery sooner and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry.” (<i>Hobart v. Hobart Estate Co.</i> (1945) 26 Cal.2d 414, 437.) Stated similarly, Plaintiff must show “(1) the time and manner of discovery <i>and</i> (2) the inability to have made earlier discovery despite reasonable diligence.” (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 808.) The plaintiff must show that “despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period.” (<i>Id.</i> at p. 809.) Plaintiffs failed to offer evidence which demonstrates that, despite diligent investigation, they could not discover the claims against Defendant BBK within the limitations period. Plaintiffs assert they were not in possession of accounting records or any internal records held by Defendant LaVine, in 2017 or 2018, and did not gain possession of any such records until after discovery was conducted in the probate action.
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		(¶14-¶24 and ¶33-¶41 of Boliver Declaration [ROA No. 799] and ¶3, ¶7-¶21, ¶24(F), ¶28-¶32 and ¶35 of Lawrence Declaration [ROA No. 797].) The above, however, does not demonstrate diligent investigation of their claims. While Plaintiffs declare “[s]ubpoenas were issued seeking records maintained by LaVine” and “[l]itigation concerning the production of those records followed” (¶31-¶32 of Boliver Declaration [ROA No. 799] and ¶26-¶27 of Lawrence Declaration [ROA No. 797]), Plaintiffs do not state <i>they</i> engaged in this discovery or participated in this litigation. Per Plaintiffs’ Counsel, the relevant discovery requests and subpoenas were served by Plaintiffs’ brother Daniel Jacobson. (¶8-¶9 of Smith Declaration [ROA No. 808].) Similarly, the motion to compel which ultimately resulted in production was pursued by Daniel Jacobson. (¶11 and ¶13 of Smith Declaration and Exhibit B thereto [ROA No. 808].) Likewise, while Plaintiff Lawrence Jacobson declares that he spoke to his brother Jeffrey Jacobson and “monitored developments relating to the dispute...” (¶24(A) and ¶24(B) of Lawrence Declaration [ROA No. 797]), this does not establish diligent investigation. Plaintiffs declare the probate production “materially expanded” their understanding of “the involvement of professionals” (¶39 of Boliver Declaration [ROA No. 799] and ¶33 of Lawrence Declaration [ROA No. 797]); however, they do not explain how the documents revealed involvement specifically by Defendant BBK. Plaintiffs’ Declarations confusingly address only their knowledge of conduct by <i>LaVine</i>, which is not the moving Defendant herein. (See ¶36, ¶38 and ¶39 of Lawrence Declaration [ROA No. 797] and ¶42, ¶44, and ¶45 of Boliver Declaration [ROA No. 799].) Consequently, Plaintiffs have not established the time and manner of discovery or the inability to earlier discover their claims, as required. (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 808.) Additionally, the Fourth Amended Complaint includes allegations of fraud: “Defendant BB&K willfully concealed the facts constituting the wrongful act or omission when those facts were known to BB&K....” (¶116 of 4AC [ROA No. 597].) As noted by the Court in <i>Vaca v. Wachovia Mortgage Corp.</i> (2011) 198 Cal.App.4th 737, “a defendant may be <i>equitably estopped</i> from asserting the statute of limitations when, as the result of intentional concealment, the plaintiff is unable to discover the defendant’s actual identity.” (<i>Id.</i> at p. 745.) “For a defendant to be equitably estopped from asserting a statute of limitations, the plaintiff must be ‘directly prevented...from filing [a] suit on time.’” (<i>Id.</i> at p. 746.) Plaintiffs offer no evidence that Defendant BBK took any action which directly prevented Plaintiffs from bringing suit on time. Based on all the above, summary judgment is GRANTED.
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